

Kanti Prasad v. Dakshinanchal Vidut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 December 2017 · Writ - C No. 48305 of 2015 · **Writ dismissed; relegated to DGRF and Ombudsman under Regulation 7.10.**

HEADNOTE

A writ against the Executive Engineer's refusal of a new electricity connection was dismissed because Regulation 7.10 of the Electricity Supply Code, 2005 supplies an alternative remedy before the District Grievance Redressal Forum and, if the grievance remains, the Ombudsman.

FACTUAL SUMMARY

Kanti Prasad challenged the 24 April 2015 order of the Executive Engineer, Electricity Distribution Division-2, Dakshinanchal Vidyut Vitran Nigam Limited, Sasni, Hathras, refusing him a new electricity connection. He alleged bribe-taking by the Executive Engineer and was permitted to implead him. Delay of 32 days was condoned. The Court had earlier asked how many new connections were given after a 15 May 2012 notification in the dark zone of his village. The petition was heard after several adjournments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum-ombudsman-route-for-connection-denial

HOLDING

Where an Executive Engineer has refused a new electricity connection, the consumer's remedy is to approach the District Grievance Redressal Forum under Regulation 7.10 of the Electricity Supply Code, 2005 and thereafter the Ombudsman; a writ petition is dismissed on that alternative-remedy ground. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S 24.04.2015 DENIAL OF CONNECTION WAS LAWFUL

Merits of the refusal, including the dark-zone notification of 15.05.2012, were not examined. ¶ 2-3

NOT DECIDED — ALLEGATION OF BRIBE-TAKING BY THE EXECUTIVE ENGINEER

¶ 2-3